

United States Court of Appeals for the Fourth Circuit

Appellant Docketing Statement

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 2 — Filed March 16, 2026

Appellant Asterglen Freight Software, Inc. submits this statement concerning its appeal from the United States District Court for the Northern District of West Virginia, Civil Action No. SYN-NDWV-25-CV-0618. The district court entered a memorandum opinion and order on January 12, 2026 granting Copper Kestrel Logistics, LLC partial summary judgment and dismissing Count I with prejudice. It entered an order and separate partial judgment on February 4, 2026. Asterglen filed its Notice of Appeal on March 3, 2026.

Asterglen invokes 28 U.S.C. § 1291 and Federal Rule of Civil Procedure 54(b), subject to this Court's independent jurisdictional review. The February 4 order granted Asterglen's Rule 54(b) motion and directed a separate judgment, but it did not state that there is no just reason for delay. The partial judgment records dismissal of Count I and contains no additional findings or determination. Count II against Meridian Silt Holdings, LLC and Copper's amended counterclaim against Asterglen remain pending in the district court.

The notice was filed within thirty days after February 4. Asterglen recognizes that timeliness and finality are distinct questions. No federal party participates, and Asterglen relies on no tolling motion, extension, or reopening order.

Nature of the action and ruling appealed

Asterglen's Complaint arises from a 2024 software deployment governed by an April 15 Pilot License. Count I alleges that Copper used Asterglen's platform beyond the licensed scope and seeks \$480,000 in contract damages. Copper answers that Asterglen itself violated Section 9.2 by terminating the license and demanding those damages on July 22 without first providing written breach notice and a fifteen-calendar-day cure opportunity. Count II seeks \$360,000 from Meridian for alleged interference with the Asterglen-Copper relationship. Copper's amended counterclaim seeks \$120,000 on its cure, performance, and offset theory.

The Pilot License authorized 12 terminals. Copper proposed 29 additional terminals on June 3. Asterglen responded in writing on June 10 with load-testing conditions, and Meridian began integration work under a June 14 statement of work. The written record reports 41 provisioned identifiers by July 1, a disputed July 8 oral-permission account, a July 18 audit, and Asterglen's July 22 immediate termination and demand. Evidence also addresses whether the count could have been reduced within three business days and Meridian's continued work through July 25.

Copper moved for partial summary judgment on Count I only, arguing that Asterglen's failure to follow the agreed cure procedure barred its contract recovery. The January 12 order granted that motion, dismissed Count I with prejudice, and left the other claims unresolved. Asterglen then sought an express Rule 54(b) determination and direction for judgment. Defendants opposed certification because the claims share facts and Copper's counterclaim may produce a setoff. The district court granted the motion in a one-page order and directed entry of judgment but did not include the requested express determination.

Issues proposed for review

The threshold issue is whether the February 4 order and partial judgment satisfy Rule 54(b) when neither document expressly determines that there is no just reason for delay. That issue includes the effect of the order's bare grant, the limits of a separate judgment, the unresolved status of Count II and the amended counterclaim, and the proper disposition if § 1291 jurisdiction is absent.

Asterglen also seeks to preserve the merits question whether Copper obtained summary judgment on Count I despite Section 9.2's written-notice and cure language and the evidence concerning cure feasibility. That question should be reached only if this Court concludes that it has jurisdiction. Asterglen does not ask this Court to decide Count II, Copper's counterclaim, Meridian's intent, or damages on any unresolved claim.

The claims share portions of the deployment record, including the additional terminals, the July 8 account, the compliance audit, the termination sequence, and the parties' damages positions. Asterglen contends the contract issue can be reviewed separately. Appellees contend the overlap, possible repeated review, and setoff reinforce the need for one final judgment. The district court's February 4 order contains no analysis of those competing positions.

If jurisdiction is lacking, the appropriate relief is dismissal of the appeal and remand without reaching or vacating the January 12 merits order. If jurisdiction exists, Asterglen requests review of the Count I summary judgment. This statement does not enlarge the Notice of Appeal or treat a preserved merits issue as a concession that the jurisdictional prerequisite has been met.

Record, related matters, and certification

The summary-judgment and Rule 54(b) motions were resolved on written submissions. No transcript is required. Asterglen filed a No-Transcript Statement and Record Designation in the district court on March 16, 2026. The written record includes 37 lower-court documents covering pleadings, contract materials, discovery and testimony, partial-summary-judgment papers, Rule 54(b) submissions, orders, judgment, notice, and the certified docket.

Asterglen is not aware of another appeal involving this action or the same partial judgment. No bankruptcy matter affects the parties, and no consolidation request is pending. The district action remains open as to Count II and Copper's amended counterclaim. The district court has entered no stay of those claims, and this appeal has not altered their formal status.

The parties are private entities. Asterglen is a corporation and will file its disclosure statement with its appearance. Appellees have appeared through counsel and are expected to submit their own disclosures. All known counsel received electronic service of this statement on March 16, 2026.

Asterglen certifies that the jurisdictional facts stated here are drawn from the district docket and entered papers. It has disclosed the absence of the express Rule 54(b) determination rather than treating the language requested in its motion as language adopted by the district court. The undersigned further certifies that the no-transcript filing accompanies the initial-document process and that the statement contains no sealed information.

Filed for Asterglen Freight Software, Inc. by its appellate counsel.